

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1732

By: Daniels of the Senate

and

Strom of the House

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8
9 An Act relating to professional licensing fees;
10 amending 59 O.S. 2021, Section 858-625, which relates
11 to fees for the Home Inspection Licensing Act;
12 increasing certain fees; amending 59 O.S. 2021,
13 Section 1000.5, which relates to the Construction
14 Industries Board Act; establishing certain fees for
15 license or permit issuance or renewal; amending 59
16 O.S. 2021, Section 1686.1, which relates to poultry
17 house contractor license; conforming language;
18 updating statutory references; updating statutory
19 language; and providing an effective date.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 59 O.S. 2021, Section 858-625, is
24 amended to read as follows:

Section 858-625. Fees for the Home Inspection Licensing Act
shall not exceed the following:

Approval fees for schools, instructors,

and home inspection organizations \$100.00

1	Approval fees for educational course	
2	content	\$50.00
3	Application for license	\$30.00
4	Licensure for reciprocity	\$50.00 <u>\$80.00</u>
5	Examination fee	\$200.00
6	License fee	\$250.00 <u>\$400.00</u>
7	License renewal	\$150.00 <u>\$240.00</u>
8	License reactivation	\$50.00

9 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1000.5, is
 10 amended to read as follows:

11 Section 1000.5. A. The Construction Industries Board may
 12 establish a system of fees by rule to be charged for the application
 13 for licenses, ~~for the issuance and renewal of licenses and permits,~~
 14 for administration of examinations, for formal project reviews, and
 15 dishonored checks under the Board's authority. This provision is
 16 subject to the following limitations:

17 1. No schedule of fees may be established or amended by the
 18 Board except during such times as the Legislature is in session;
 19 provided, the Board may establish or amend a schedule of fees at a
 20 time when the Legislature is not in session if the fees or schedule
 21 of fees has been specifically authorized by the Legislature pursuant
 22 to paragraph 2 of this subsection. The Board must follow the
 23 procedures required by Article I of the Administrative Procedures
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1 Act for adoption of rules in establishing or amending any such
2 schedule of fees; ~~and~~

3 2. The Board shall charge fees ~~only within the following ranges~~
4 as follows, except as may be otherwise specified in this section or
5 another provision of law~~;~~:

6 For application for license ~~not to exceed~~ \$30.00

7 For administration of license

8 examinations: ~~not to exceed~~ \$200.00

9 ~~For license or permit issuance: not to exceed~~ \$300.00

10 ~~For license or permit renewal: not to exceed~~ \$200.00

11 For formal project review for

12 code conformance: ~~not to exceed~~ \$200.00

13 For permit issuance for the use

14 of alternative materials or

15 methods: ~~not to exceed~~ \$50.00

16 For dishonored checks: ~~not to exceed~~ an amount

17 pursuant to the

18 provisions of Section

19 1121 of Title 47 of the

20 Oklahoma Statutes.

21 3. The Board shall charge fees for a plumbing, electrical, or
22 mechanical license, registration, or endorsement issuance or renewal
23 as follows, except as may otherwise be specified in this section or
24 another provision of law:

Initial contractor license \$480.00

Renewal contractor license \$320.00

Renewal contractor license with
late fee \$420.00

Initial journeyman license \$80.00

Renewal journeyman license \$120.00

Renewal journeyman license with
late fee \$220.00

Apprentice registration \$32.00

Initial alarm endorsement \$120.00

Renewal alarm endorsement \$40.00

4. The Board shall charge fees for home inspection industry
license issuance or renewal as follows, except as may otherwise be
specified in this section or another provision of law:

Licensure for reciprocity \$80.00

License fee \$400.00

Renewal fee \$240.00

5. The Board shall charge a fee of Fifty-five Dollars (\$55.00)
for the initial issuance or renewal of a license for building,
electrical, mechanical, plumbing, or energy code inspectors; and

6. The Board shall charge a fee of Four Hundred Eighty Dollars
(\$480.00) for an initial poultry house contractor license and Three
Hundred Twenty Dollars (\$320.00) for a renewal poultry house
contractor license.

1 B. The Board shall base its schedule of fees upon the
2 reasonable costs of review and inspection services rendered in
3 connection with each license, permit, or review, but such fees shall
4 be within the ranges specified ~~in paragraph 2 of subsection A of~~
5 ~~this section, except as otherwise specified~~ in this section or as
6 provided by law. The Board shall establish a system of training for
7 all personnel who render review and inspection services in order to
8 assure uniform ~~statewide~~ application of rules. The Board shall
9 include the reasonable costs associated with such training in the
10 fees provided for in this section.

11 C. The Board may exempt by rule any class of licensee or
12 permittee from the requirements of the fee schedule if the Board
13 determines that the creation of such a schedule for any such class
14 would create an unreasonable economic hardship.

15 D. All fee changes adopted by the Board shall be reviewed and
16 approved as provided in subsection ~~F~~ E of Section 308 of Title 75 of
17 the Oklahoma Statutes.

18 E. Unless otherwise provided, licenses and permits issued by
19 the Construction Industries Board shall be for a one-year period.

20 F. When, at the time of application or renewal of any license
21 or registration, payment is made by check for fees and the check is
22 not paid by the bank on which drawn for any reason, such license or
23 registration issued at that time shall be invalid. In all such
24 cases, the license or registration shall be subject to the license

1 or registration fees and penalties provided in ~~subsection A of this~~
2 section or another provision of law and treated as though no attempt
3 to apply for or renew a license or registration had been made. The
4 Board may charge and collect from the licensee, registrant, or other
5 obligor of fees or fines, a fee for each return by a bank or other
6 depository institution of a dishonored check, negotiable order of
7 withdrawal, or share draft issued by the licensee, registrant, or
8 other obligor.

9 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1686.1, is
10 amended to read as follows:

11 Section 1686.1. A. The Construction Industries Board is hereby
12 authorized to establish a license category for contractors who
13 solely perform poultry house premise wiring for environmentally
14 controlled poultry house systems, and the insured poultry house
15 wiring to connect the premise wiring, and who do not perform any
16 wiring for a structure or electrical facility that is not directly
17 involved in the operation of the environmentally controlled poultry
18 house wiring system. In addition to other statutory authority, the
19 Construction Industries Board shall have the power to exercise all
20 incidental powers and duties necessary to effectuate the provisions
21 of the poultry house contractor license, conduct investigations
22 involving compliance with the licensing requirements, and enforce
23 the licensing provisions of this section. However, the Construction
24 Industries Board is not authorized to conduct an electrical code

1 inspection of an environmentally controlled poultry house premise
2 wiring system for purposes of compliance with electrical code
3 installation standards established for the Electrical License Act or
4 to issue administrative citations or fines concerning electrical
5 code installation standards at an environmentally controlled poultry
6 house.

7 1. With a valid poultry house contractor license, no further
8 registration or license is required under ~~this act~~ the Electrical
9 License Act in order to solely perform poultry house wiring for
10 environmentally controlled poultry houses. This license allows
11 contracting only for wiring of environmentally controlled poultry
12 house systems and is not intended to disallow or exclude unlimited
13 electrical contractors from performing poultry house wiring work
14 under an unlimited electrical contractor license without a poultry
15 house contractor license.

16 2. Experience under the poultry house contractor license shall
17 not be considered qualifying electrical experience for purposes of
18 experience requirements for application of any other electrical
19 license category pursuant to the Electrical License Act.

20 3. The Board may rely upon proof of a valid construction
21 license or registration issued by another state to expedite the
22 processing of the required information for a poultry house
23 contractor license~~+~~1 provided~~7~~ the insurance and workers'

24

1 compensation requirements demonstrate compliance with the required
2 coverage for work performed in this state.

3 4. All licenses shall be nontransferable, and it shall be a
4 misdemeanor for any business entity holding a poultry house
5 contractor license under the provisions of the Electrical License
6 Act to loan or allow the use of such license by any other person,
7 firm, or corporation, except as specifically provided in the
8 Electrical License Act or to engage in poultry house contractor
9 license work without a valid license pursuant to ~~this act~~ the
10 Electrical License Act.

11 B. A nonrefundable fee in the amount of ~~Three Hundred Dollars~~
12 ~~(\$300.00)~~ set forth in Section 1000.5 of this title for the annual
13 poultry house contractor license shall be paid at the time of
14 license application to the Construction Industries Board. The
15 annual license shall expire one (1) year from the date of issuance.
16 A poultry house contractor license shall be issued for one (1) year,
17 at which time it may be renewed upon meeting the requirements of
18 this section, making application, and paying the nonrefundable
19 license renewal fee in the amount of ~~Two Hundred Dollars (\$200.00)~~
20 set forth in Section 1000.5 of this title.

21 C. The Construction Industries Board shall, upon proper
22 application and payment of fee, license and issue a certificate of
23 poultry house contractor license to any person who furnishes
24 satisfactory proof to the Board that the applicant:

1 1. Is eighteen (18) years of age or over;

2 2. Is the party performing, overseeing, or otherwise
3 responsible for the poultry house contractor work performed and who
4 meets all requirements of ~~this act~~ the Electrical License Act and
5 resulting rules required to obtain such license; and

6 3. Has provided all necessary information and documentation
7 required under ~~this act~~ the Electrical License Act, the resulting
8 rules, and as requested by the Board.

9 D. The Construction Industries Board shall require the
10 following for a poultry house contractor license:

11 1. The applicant's full legal name, physical address, mailing
12 address, business name, telephone number of business and applicant,
13 address and place of incorporation, if any, and address of legal
14 registered service agent in this state;

15 2. Proof of lawful presence in the United States for the
16 applicant and all employees and laborers working under the applicant
17 in this state who will be involved in wiring ~~a poultry house~~ for
18 environmentally controlled poultry houses;

19 3. A listing of the names and social security numbers of all
20 employees and laborers working in this state who will be involved in
21 wiring ~~a poultry house~~ for environmentally controlled poultry
22 houses. The social security number information shall remain with
23 the Board as confidential and privileged except for necessary
24 disclosures to state agencies to verify compliance with requirements

1 of ~~this act~~ the Electrical License Act or upon request by law
2 enforcement;

3 4. The business entity's federal tax ID number or the
4 employer's or owner's social security number. ~~The~~ and the
5 employer's account number assigned by the Oklahoma Employment
6 Security Commission. The social security number information shall
7 remain with the Board as confidential and privileged except for
8 necessary disclosures to state agencies to verify compliance with
9 requirements of ~~this act~~ the Electrical License Act or upon request
10 by law enforcement;

11 5. A letter of good standing from the Secretary of State in the
12 state the contractor is domiciled and other documentation of valid
13 license or registration from the domicile state licensing or
14 registration board, commission, or agency;

15 6. Disclosure of resident or nonresident contractor status, and
16 state of residence and domicile;

17 7. A copy of the applicant's certificate of liability insurance
18 ~~shall~~ to be filed with the application and ~~shall be~~ in an amount not
19 less than Five Hundred Thousand Dollars (\$500,000.00). Any
20 insurance company issuing a liability policy to an applicant
21 pursuant to the provisions of the poultry house contractor license
22 under ~~this act~~ the Electrical License Act shall be required to
23 notify the Construction Industries Board in the event such liability
24 policy is ~~cancelled~~ canceled for any reason or lapses for nonpayment

1 of premiums. All licenses granted under ~~this act~~ the Electrical
2 License Act shall be suspended on the date of the policy
3 cancellation. The Board must receive proof of insurance prior to
4 reinstating the license;

5 8. ~~The applicant shall submit proof~~ Proof of satisfactory
6 workers' compensation coverage under the Administrative Workers'
7 Compensation Act or an affidavit of exemption or self-insurance as
8 authorized pursuant to the Administrative Workers' Compensation Act;

9 9. Disclosure of any felony convictions; and

10 10. ~~Applicants for poultry house contractor license shall~~
11 ~~provide such additional~~ Additional documents, statements, or other
12 information as may be deemed appropriate or necessary and required
13 by the Board.

14 E. The Construction Industries Board shall refuse to license
15 any person if the Board determines:

16 1. The application contains false, misleading, or incomplete
17 information;

18 2. The applicant or any member of the business entity fails or
19 refuses to provide any information requested by the Board;

20 3. The applicant fails or refuses to pay the required fees;

21 4. The applicant or owner or officer or managing member of the
22 legal entity is ineligible for license due to a suspended or revoked
23 license or registration in this state;

1 5. The nonresident applicant has a revoked or suspended
2 registration or license required by law for contractors in another
3 state; or

4 6. The applicant or legal entity has failed or refuses to
5 submit any taxes due in this state.

6 F. The Board shall suspend the poultry house contractor license
7 when the licensee fails to:

8 1. Maintain liability insurance coverage;

9 2. Maintain satisfactory workers' compensation coverage under
10 the Administrative Workers' Compensation Act or provide an affidavit
11 of exemption or self-insurance as authorized pursuant to the
12 Administrative Workers' Compensation Act;

13 3. Comply with provisions of the Electrical License Act or any
14 rule or order issued pursuant thereto;

15 4. Perform normal business obligations without justifiable
16 cause;

17 5. Notify the Board of a change in name, address, legal
18 business entity, legal service agent, adverse finding by a licensing
19 entity in this state or another state or adjudication by a court of
20 competent jurisdiction for any act or omission that is a violation
21 of the Electrical License Act;

22 6. Maintain a registration or license as required by law in
23 another state while licensed in this state as a nonresident
24 contractor; or

1 7. File and pay all taxes of the contractor or legal entity
2 when due in this state.

3 SECTION 4. This act shall become effective July 1, 2028.

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5 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
6 04/23/2026 - DO PASS.

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